

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Ex Parte Applications  
Commissioner David Foster  
Courtroom 9

627 W. 21<sup>st</sup> Street, Merced

Monday, September 14, 2026  
1:15 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

| Case No.   | Title / Description                                                                                                                                                                |
|------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 26CV-02047 | [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]<br>Ex Parte Application for Order Setting Aside Judgment and Staying Execution of Judgment<br><b>Appearance required.</b> |
| 26CV-02355 | [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]<br>Ex Parte Application for Order Staying Eviction<br><b>Appearance required.</b>                                         |

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Limited Civil  
Commissioner David Foster  
Courtroom 9

627 W. 21<sup>st</sup> Street, Merced

Monday, September 14, 2026  
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

| Case No. | Title / Description |
|----------|---------------------|
|----------|---------------------|

|            |                                   |
|------------|-----------------------------------|
| 24CV-03246 | Cavalry SPV I, LLC vs. Elias Rios |
|------------|-----------------------------------|

Motion for Order Deeming Admitted Requests for Admission

**The unopposed motion by plaintiff Cavalry SPV I, LLC, for an order deeming admitted the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Elias Rios is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served a response to the requests for admissions. The Court notes that Plaintiff has not requested monetary sanctions.**

**The Court will sign the proposed order submitted with the moving papers.**

Trial Setting Conference

**Appearance required.**

---